

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.  
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

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**RESPONDENTS' MOTION TO FILE UNDER SEAL EXHIBIT B TO RESPONDENTS'  
MOTION TO EXCLUDE TESTIMONY OF JOHN D. MCCOWN**

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) respectfully move for an order permitting Respondents to file an unredacted copy of Exhibit B to Respondents’ Motion to Exclude Testimony of John D. McCown under seal with the Presiding Officer and to file a redacted copy of the motion on the public docket. Exhibit B is Mr. McCown’s expert report, which has been designated as confidential by Complainant and the Appendices thereto, which have been designated as confidential by Respondents as they contain sensitive details and pricing information relating to Respondents’ services and business.

The Presiding Officer issued a Protective Order governing discovery in this case on July 28, 2023. Pursuant to that order, Respondents seek leave to file Exhibit B to the Motion to Exclude Testimony of John D. McCown under seal and to file a redacted copy for the public docket.

DATED: December 20, 2024

Respectfully submitted,

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### **CERTIFICATE OF SERVICE**

I hereby certify that on the 20th day of December 2024, a true and correct copy of the foregoing **Motion to File Under Seal** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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